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but Congress might decide to raise that 2-year cap (or remove it altogether). Does the Suspension Clause let Congress close the courthouse doors to a long-term permanent resident facing removal? In *INS v. St. Cyr*, 533 U. S. 289 (2001), we avoided just that “serious and difficult constitutional issue.” *Id.*, at 305.

Could Congress, for that matter, deny habeas review to someone ordered removed despite claiming to be a natural-born U.S. citizen? The petitioner in *Chin Yow v. United States*, 208 U. S. 8 (1908), and others have faced that predicament. See also § 1252(e)(2)(A) (permitting, at present, habeas review of citizenship claims). What about foreclosing habeas review of a claim that rogue immigration officials forged the record of a credible-fear interview that, in truth, never happened? Or that such officials denied a refugee asylum based on the dead-wrong legal interpretation that Judaism does not qualify as a “religion” under governing law? Cf. *Tod v. Waldman*, 266 U. S. 113, 119–120 (1924) (observing that immigration officials ignored a Jewish family’s claim that they were “refugees” fleeing “religious persecution”).

The answers to these and other “difficult questions about the scope of [Suspension Clause] protections” lurk behind the scenes here. *Lozman v. Riviera Beach*, 585 U. S. 87, 99 (2018). I would therefore avoid making statements about the Suspension Clause that sweep beyond the principles needed to decide this case—let alone come to conclusions about the Due Process Clause, a distinct constitutional provision that is not directly at issue here. Compare *ibid.* (concluding that, with narrow grounds for decision available, resolving broader, more difficult questions “must await a different case”) with *ante*, at 117–121 (suggesting that removal is simply not the sort of “restraint” for which the Suspension Clause guarantees a means of “securing release”), and *ante*, at 138–140 (addressing a separate due process question).

As for the resolution of the dispute before us, Congress, in my view, had the constitutional power to foreclose habeas

review of the claims that respondent has pressed in this case. Habeas corpus, as we have said, is an “adaptable remedy,” and the “precise application and scope” of the review it guarantees may change “depending upon the circumstances.” *Boumediene v. Bush*, 553 U. S. 723, 779 (2008); see also *id.*, at 813 (ROBERTS, C. J., dissenting). So where the Suspension Clause applies, the “habeas court’s role” may prove more “extensive,” or less so, depending on the context at issue. *Id.*, at 780 (majority opinion). Here, even assuming that the Suspension Clause guarantees respondent some form of habeas review—which is to say, even accepting for argument’s sake that the relief respondent seeks *is* “release,” contra, *ante*, at 126–127—the scope of that constitutionally required review would not extend to his claims. Two features of this case persuade me.

First, respondent’s status suggests that the constitutional floor set by the Suspension Clause here cannot be high. A Border Patrol agent apprehended respondent just 25 yards inside the border. Respondent was placed in expedited removal proceedings shortly thereafter, where he received the same consideration for relief from removal that Congress has afforded persons arriving at the border. Respondent has never lived in, or been lawfully admitted to, the United States.

To my mind, those are among the “circumstances” that inform the “scope” of any habeas review that the Suspension Clause might guarantee respondent. *Boumediene*, 553 U. S., at 779. He is thus in a materially different position for Suspension Clause purposes than the noncitizens in, for example, *Rowoldt v. Perfetto*, 355 U. S. 115 (1957), *United States ex rel. Accardi v. Shaughnessy*, 347 U. S. 260 (1954), *Bridges v. Wixon*, 326 U. S. 135 (1945), and *Hansen v. Haff*, 291 U. S. 559 (1934). They had all lived in this country for years. The scope of whatever habeas review the Suspension Clause assures respondent need not be as extensive as it might for someone in that position.

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Second, our precedents demonstrate that respondent's claims are of the kind that Congress may, consistent with the Suspension Clause, make unreviewable in habeas proceedings. Even accepting respondent's argument that our "finality era" cases map out a constitutional minimum, see *ante*, at 128–129, his claims, on the facts presented here, differ significantly from those that we reviewed throughout this period.

To begin, respondent concedes that Congress may eliminate habeas review of factual questions in cases like this one. See, e. g., *Nishimura Ekiu v. United States*, 142 U. S. 651, 660 (1892). He has thus disclaimed the "right to challenge the historical facts" found by immigration officials during his credible-fear process. Tr. of Oral Arg. 44. But even though respondent has framed his two primary claims as asserting legal error, substance belies that label. Both claims are, at their core, challenges to factual findings.

During his credible-fear interview, respondent said that he is an ethnic Tamil from Sri Lanka and that, one day, a group of men abducted him in a van and brutally beat him. App. 67, 70–74. The asylum officer believed respondent's account, *id.*, at 83, which respondent confirmed was his sole basis for seeking relief, *id.*, at 77, 79. The critical question, then, concerned the nature of the attack: Who attacked respondent and why? In written findings, the asylum officer concluded that it was "unknown who these individuals were or why they wanted to harm [respondent]." *Id.*, at 87. Based on those findings, the asylum officer determined that respondent had not established a credible fear of persecution or torture within the meaning of governing law. See *id.*, at 87, 89.

Respondent, to be sure, casts the brunt of his challenge to this adverse credible-fear determination as two claims of legal error. But it is the factual findings underlying that determination that respondent, armed with strong new *factual* evidence, now disputes. See *id.*, at 23–27; Brief for

Professors of Sri Lankan Politics as *Amici Curiae* 7–11; see also *ante*, at 140, n. 28 (noting that immigration officials may revisit their findings in light of this additional evidence).

Respondent first asserts that the asylum officer failed to apply—or at least misapplied—the applicable legal standard under § 1225(b)(1)(B)(v), which required only a “significant possibility” that respondent could establish entitlement to relief from removal. See App. 30–32; Brief for Respondent 6. Respondent also contends that the asylum officer “demonstrated a fatal lack of knowledge” about conditions in Sri Lanka, *id.*, at 7, in violation of provisions requiring that asylum officers consider “other facts as are known to the officer,” § 1225(b)(1)(B)(v), and have “had professional training in country conditions,” § 1225(b)(1)(E)(i). See App. 24–26, 28–29, 31.

At the heart of both purportedly legal contentions, however, lies a disagreement with immigration officials’ findings about the two brute facts underlying their credible-fear determination—again, the identity of respondent’s attackers and their motive for attacking him. Other than his own testimony describing the attack, respondent has pointed to nothing in the administrative record to support either of these claims.

As to his legal-standard claim, respondent does not cite anything affirmatively indicating that immigration officials misidentified or misunderstood the proper legal standard under § 1225(b)(1)(B)(v). Rather, he argues that their credible-fear determination was so egregiously wrong that it simply *must* have rested on such a legal error. See Tr. of Oral Arg. 46–50. But that contention rests on a refusal to accept the facts as found by the immigration officials. Specifically, it rejects their findings that no evidence suggested respondent was attacked by men affiliated with the Sri Lankan Government and motivated by respondent’s Tamil ethnicity or (as he now alleges) history of political activism. See App. 87; see also, *e.g., id.*, at 23–26. Respondent’s

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quarrel, at bottom, is not with whether settled historical facts satisfy a legal standard, see *Guerrero-Lasprilla v. Barr*, 589 U. S. 221, 227 (2020), but with what the historical facts *are*.

Respondent's country-conditions claim is much the same. Respondent does not cite anything in the administrative record affirmatively indicating that, contrary to §§ 1225(b)(1)(B)(v) and (E)(i), immigration officials, for example, consciously disregarded facts presented or otherwise known to them, or that the asylum officer never received relevant professional training. Instead, respondent offers a similar refrain: The credible-fear determination was so egregiously wrong that immigration officials simply *must* not have known about conditions in Sri Lanka. See Brief for Respondent 7. So this claim, too, boils down to a factual argument that immigration officials should have known who respondent's attackers were and why they attacked him.

Mindful that the "Constitution deals with substance, not shadows," *Salazar v. Buono*, 559 U. S. 700, 723 (2010) (ROBERTS, C. J., concurring) (internal quotation marks omitted), I accordingly view both claims as factual in nature, notwithstanding respondent's contrary characterization. For that reason, Congress may foreclose habeas review of these claims without running afoul of the Suspension Clause. See, e. g., *Nishimura Ekiu*, 142 U. S., at 660.

The other two claims of error that respondent has pressed assert that immigration officials violated procedures required by law. He first contends that, by not asking additional questions during the credible-fear interview, the asylum officer failed to elicit "all relevant and useful information," in violation of 8 CFR § 208.30(d) (2020). See App. 27, 31. Respondent further alleges that translation problems arose during the interview, in violation of the asylum officer's duty under §§ 208.30(d)(1) and (2) to ensure that respondent was "[a]ble to participate effectively" and "ha[d] an understanding of the credible fear determination process." See

id., at 27–28, 31. Though both claims may reasonably be understood as procedural, they may constitutionally be treated as unreviewable—at least under the border-entry circumstances present in this case. See *supra*, at 152.

Respondent’s procedural claims are unlike those that we reviewed in habeas proceedings during the finality era. Throughout that period, the procedural claims that we addressed asserted errors that fundamentally undermined the efficacy of process prescribed by law. See *Chin Yow*, 208 U. S., at 11 (observing that a noncitizen could obtain habeas relief on procedural grounds if he was denied “an opportunity to prove his right to enter the country, as the statute meant that he should have”). Many of our finality era cases thus dealt with situations in which immigration officials failed entirely to take obligatory procedural steps.

In *Waldman*, for example, we faulted immigration officials for making “no finding[s]” at all on potentially dispositive issues, including whether the noncitizens were fleeing religious persecution and therefore exempt from a literacy requirement. 266 U. S., at 120. And in *United States ex rel. Johnson v. Shaughnessy*, 336 U. S. 806 (1949), we reversed for procedural error because the noncitizen was denied outright “the independent [medical] review and re-examination” required by then-governing law. *Id.*, at 812; see also *Accardi*, 347 U. S., at 267 (faulting the Attorney General for short-circuiting altogether legally prescribed adjudication procedures by “dictating” an immigration decision himself).

Respondent’s procedural claims are different. He does not allege that immigration officials, say, denied him a credible-fear interview or skipped a layer of intra-agency review altogether. Nor do his allegations suggest that the asylum officer’s questioning or the interpreter’s translation constructively deprived him of the opportunity to establish a credible fear; indeed, he has consistently maintained that the information that *was* elicited more than sufficed. See, e. g., Tr. of Oral Arg. 46–48; cf. *Chin Yow*, 208 U. S., at 13

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(observing that “the denial of a hearing cannot be established” merely “by proving that the decision was wrong”). Respondent thus contends that the credible-fear process was procedurally defective for reasons that are more technical. He alleges that additional questions would have yielded further “relevant and useful” information and that “communication issues affected the interview” in some way. App. 27.

Respondent’s procedural claims consequently concern not the outright denial (or constructive denial) of a process, but the precise way in which the relevant procedures were administered. They raise fine-grained questions of degree—*i. e.*, whether the asylum officer made *sufficiently thorough* efforts to elicit all “relevant and useful information” and whether he took *sufficiently thorough* precautions to ensure that respondent was “[a]ble to participate effectively” in the interview. 8 CFR § 208.30(d).

Reviewing claims hinging on procedural details of this kind would go beyond the traditionally “limited role” that habeas has played in immigration cases similar to this one—even during the finality era. *St. Cyr*, 533 U. S., at 312. To interpret the Suspension Clause as insisting upon habeas review of these claims would require, by constitutional command, that the habeas court make indeterminate and highly record-intensive judgments on matters of degree. Respondent has not cited, and I have not found, any case of ours suggesting that the Suspension Clause demands parsing procedural compliance at so granular a level. Neither, apparently, has the Solicitor General. See Tr. of Oral Arg. 14–15, 23–24; Brief for Petitioners 38.

Together with respondent’s status, see *supra*, at 152, these characteristics convince me that Congress had the constitutional power to foreclose habeas review of respondent’s procedural claims. Recasting those claims as an allegation that respondent’s “due process rights were violated by” immigration officials makes no material difference. App. 32. That alternative description changes none of the features that, in

my view, put respondent's procedural claims beyond the scope of any minimum habeas review that the Suspension Clause might assure him under the circumstances.

* * *

For these reasons, I would hold that, as applied to respondent, § 1252(e)(2)'s limits on habeas review do not violate the Suspension Clause. I would go no further.

JUSTICE SOTOMAYOR, with whom JUSTICE KAGAN joins, dissenting.

The majority declares that the Executive Branch's denial of asylum claims in expedited removal proceedings shall be functionally unreviewable through the writ of habeas corpus, no matter whether the denial is arbitrary or irrational or contrary to governing law. That determination flouts over a century of this Court's practice. In case after case, we have heard claims indistinguishable from those respondent raises here, which fall within the heartland of habeas jurisdiction going directly to the origins of the Great Writ.

The Court thus purges an entire class of legal challenges to executive detention from habeas review, circumscribing that foundational and "stable bulwark of our liberties," 1 W. Blackstone, Commentaries 99 (Am. ed. 1832). By self-imposing this limitation on habeas relief in the absence of a congressional suspension, the Court abdicates its constitutional duty and rejects precedent extending to the foundations of our common law.

Making matters worse, the Court holds that the Constitution's due process protections do not extend to noncitizens like respondent, who challenge the procedures used to determine whether they may seek shelter in this country or whether they may be cast to an unknown fate. The decision deprives them of any means to ensure the integrity of an expedited removal order, an order which, the Court has just held, is not subject to any meaningful judicial oversight as

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to its substance. In doing so, the Court upends settled constitutional law and paves the way toward transforming already summary expedited removal proceedings into arbitrary administrative adjudications.

Today's decision handcuffs the Judiciary's ability to perform its constitutional duty to safeguard individual liberty and dismantles a critical component of the separation of powers. It will leave significant exercises of executive discretion unchecked in the very circumstance where the writ's protections "have been strongest." *INS v. St. Cyr*, 533 U. S. 289, 301 (2001). And it increases the risk of erroneous immigration decisions that contravene governing statutes and treaties.

The Court appears to justify its decision by advertent to the burdens of affording robust judicial review of asylum decisions. But our constitutional protections should not hinge on the vicissitudes of the political climate or bend to accommodate burdens on the Judiciary. I respectfully dissent.

I

The as-applied challenge here largely turns on how the Court construes respondent's requests for relief. Its descriptions, as well as those of one of the concurrences, skew the essence of these claims. A proper reframing thus is in order.

A

Respondent first advances a straightforward legal question that courts have heard in habeas corpus proceedings in "case after case." *Id.*, at 306. His habeas petition claimed that an asylum officer and Immigration Judge "appl[ied] an incorrect legal standard" by ordering him removed despite a showing of a significant possibility of credible fear to establish "eligibility for asylum, withholding of removal, and [Convention Against Torture] claims." App. 31–32; see also 8 U. S. C. § 1225(b)(1)(B)(v) (setting standard for credible fear as "a significant possibility, taking into account the . . . state-

ments made by the alien . . . and such other facts as are known to the officer, that the alien could establish eligibility for asylum”). The Government itself has characterized that claim as a challenge to the “‘application of a legal standard to factual determinations . . . underlying the Executive’s negative credible-fear findings.’” 917 F. 3d 1097, 1117, n. 20 (CA9 2019) (case below). At bottom, respondent alleged that he was unlawfully denied admission under governing asylum statutes and regulations.

The Court disagrees, flattening respondent’s claim into a mere plea “ultimately to obtain authorization to stay in this country.” *Ante*, at 107; see also *ante*, at 117 (describing the request as a “right to enter or remain in a country”); *ante*, at 118, n. 14 (framing relief sought as “gaining a right to remain in this country”); *ante*, at 120 (equating relief with “authorization . . . to remain in a country other than his own”). Yet while the Court repeatedly says that respondent seeks nothing more than admission as a matter of grace, its own descriptions of respondent’s habeas petition belie its assertions. See, *e. g.*, *ante*, at 110, n. 5 (“[T]he gravamen of his petition is that [respondent] faces persecution in Sri Lanka ‘because of’ his Tamil ethnicity and political opinions”); *ibid.* (suggesting that the same persecution inquiry governs respondent’s Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment claim); *ante*, at 140, n. 28 (observing that respondent’s habeas petition contains factual allegations that resemble documented persecution on the basis of ethnicity or political opinion). Though the Court refuses to admit as much, its descriptions of respondent’s arguments illustrate, at bottom, claims that immigration officials legally erred in their review of his asylum application.

In papering over the true nature of respondent’s claims, the Court transforms his assertions of legal error in the exercise of executive discretion into a naked demand for executive action. But the distinction between those forms of re-

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lief makes all the difference. The law has long permitted habeas petitioners to challenge the legality of the exercise of executive power, even if the executive action ultimately sought is discretionary. See *St. Cyr*, 533 U. S., at 307 (citing cases). That principle has even more force today, where an entire scheme of statutes and regulations cabins the Executive’s discretion in evaluating asylum applications. For that reason, the Court’s observation that the ultimate “grant of asylum is discretionary” is beside the point. *Ante*, at 110, n. 4.

For its part, one concurring opinion seems to acknowledge that claims that assert something other than pure factual error may constitutionally require some judicial review. *Ante*, at 152–154 (BREYER, J., concurring in judgment). It simply determines that respondent’s credible-fear claims amount to nothing more than a “disagreement with immigration officials’ findings about the two brute facts underlying their credible-fear determination,” namely, the identity of his attackers and their motivations. *Ante*, at 154. It also faults respondent for failing to develop his claims of legal error with citations “indicating that immigration officials misidentified or misunderstood the proper legal standard” or that they “disregarded” or were not properly trained in identifying relevant country conditions. *Ante*, at 154–155.

But the essence of respondent’s petition is that the facts as presented (that he, a Tamil minority in Sri Lanka, was abducted by unidentified men in a van and severely beaten), when considered in light of known country conditions (as required by statute), amount at least to a “significant possibility” that he could show a well-founded fear of persecution. So viewed, respondent’s challenge does not quibble with historic facts, but rather claims that those “settled facts satisfy a legal standard,” which this Court has held amounts to a “legal inquiry.” *Guerrero-Lasprilla v. Barr*, 589 U. S. 221, 227–228 (2020). The concurring opinion suggests that any conclusions drawn from the discrete settled facts here could not be “so egregiously wrong” as to amount to legal error.

Ante, at 154. But the ultimate inquiry is simply whether the facts presented satisfy a statutory standard. While this concurring opinion may believe that the facts presented here do not show that respondent is entitled to relief, its view of the merits does not alter the legal nature of respondent's challenge.

B

Second, respondent contended that the inadequate procedures afforded to him in his removal proceedings violated constitutional due process. Among other things, he asserted that the removal proceedings by design did not provide him a meaningful opportunity to establish his claims, that the translator and asylum officer misunderstood him, and that he was not given a "reasoned explanation" for the decision. App. 27, 32; see also *id.*, at 32 (arguing that "[u]nder constitutionally adequate procedures, [respondent] would have prevailed on his claims"). Again, however, the Court falls short of capturing the procedural relief actually requested. The Court vaguely suggests that respondent merely wanted more cracks at obtaining review of his asylum claims, not that he wanted to challenge the existing expedited removal framework or the process actually rendered in his case as constitutionally inadequate. See *ante*, at 107 (characterizing respondent as asking for "additional administrative review of his asylum claim"); see also *ante*, at 110, n. 5 (describing petition as seeking "another opportunity to apply for asylum"). That misconstrues respondent's procedural challenges to the expedited removal proceedings, which matters crucially; a constitutional challenge to executive detention is just the sort of claim the common law has long recognized as cognizable in habeas. See generally Part II, *infra*.

One concurring opinion, meanwhile, properly characterizes respondent's claims on this score as "procedural" challenges. *Ante*, at 156 (opinion of BREYER, J.). Yet it concludes that those claims are not reviewable because they do not allege sufficiently serious defects. See *ante*, at 156–157 (describing

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cognizable claims as those involving “no [factual] finding[s],” contentions that officials “skipped a layer of intra-agency review altogether,” the “outright denial (or constructive denial) of a process,” or an official’s “fail[ure] entirely to take obligatory procedural steps”). But these are simply distinctions of degree, not of kind. Respondent claimed that officials violated governing asylum regulations and deprived him of due process by conducting an inadequate interview and providing incomplete translation services. It is difficult to see the difference between those claims and the ones that the concurring opinion upholds as cognizable. Cf. *ante*, at 156 (finding cognizable claims that an official “short-circuit[ed] altogether legally prescribed adjudication procedures by ‘dictating’ an immigration decision” and that an official deprived a noncitizen of “‘an opportunity to prove his right to enter the country, as the statute meant that he should have’”).

Indeed, the concurring opinion notes that the core question is whether a defect “fundamentally undermined the efficacy of process prescribed by law.” *Ibid.* Respondent’s petition plainly posits procedural defects that violate, or at least call into question, the “efficacy of process prescribed by law” and the Constitution. *Ibid.* The concurring opinion might think that respondent is not entitled to additional protections as a matter of law or that the facts do not show he was denied any required process. But conclusions about the merits of respondent’s procedural challenges should not foreclose his ability to bring them in the first place.

C

Finally, the Court asserts that respondent did not specifically seek “release” from custody in what the Court styles as the “traditional” sense of the term as understood in habeas jurisprudence. *Ante*, at 115, 118; cf. *ante*, at 119 (suggesting that respondent “does not claim an entitlement to release”). Instead, the Court seems to argue that respondent seeks

only a peculiar form of release: admission into the United States or additional asylum procedures that would allow for admission into the United States. Such a request, the Court implies, is more akin to mandamus and injunctive relief. *Ante*, at 118.

But it is the Court's directionality requirement that bucks tradition. Respondent asks merely to be freed from wrongful executive custody. He asserts that he has a credible fear of persecution, and asylum statutes authorize him to remain in the country if he does. That request is indistinguishable from, and no less "traditional" than, those long made by non-citizens challenging restraints that prevented them from otherwise entering or remaining in a country not their own. See Part II-B-1, *infra*.

The Court has also never described "release" as the sole remedy of the Great Writ. Nevertheless, respondent's petition is not limited in the way the Court claims. As it acknowledges, *ante*, at 115, respondent directly asked the District Court to "[i]ssue a writ of habeas corpus" without further limitation on the kind of relief that might entail, App. 33. Respondent also sought "an [o]rder directing [the Government] to show cause why the writ should not be granted" and an order "directing [the Government] to vacate the expedited removal order entered against [him]." *Ibid*. As the petition's plain language indicates, respondent raised a garden-variety plea for habeas relief in whatever form available and appropriate, including, but not limited to, release.

* * *

Fairly characterized, respondent's claims allege legal error (for violations of governing asylum law and for violations of procedural due process) and an open-ended request for habeas relief. It is "uncontroversial" that the writ encompasses such claims. See *Boumediene v. Bush*, 553 U. S. 723, 779 (2008) (concluding that release is but one form of relief available); see also *St. Cyr.*, 533 U. S., at 302, 304–308 (citing

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cases predating the founding to show that the writ could challenge “the erroneous application or interpretation” of relevant law); see also Part II–D, *infra*.

II

Only by recasting respondent’s claims and precedents does the Court reach its decision on the merits. By its account, none of our governing cases, recent or centuries old, recognize that the Suspension Clause guards a habeas right to the type of release that respondent allegedly seeks.¹ *Ante*, at 118, n. 14 (finding no evidence that the writ was understood in 1789 to grant relief that would amount to “gaining a right to remain in this country”); *ante*, at 118 (characterizing a “‘meaningful opportunity’” for review of asylum claims as falling outside of traditional notions of release from custody). An overview of cases starting from the colonial period to the present reveals that the Court is incorrect, even accepting its improper framing of respondent’s claims.

¹The Court wisely declines to explore whether the Suspension Clause independently guarantees the availability of the writ or simply restricts the temporary withholding of its operation, a point of disagreement between the majority and dissent in *INS v. St. Cyr*, 533 U.S. 289 (2001). *Ante*, at 116, n. 12. Justice Scalia, dissenting in *St. Cyr*, wrote that the Suspension Clause “does not guarantee any content to (or even the existence of) the writ of habeas corpus, but merely provides that the writ shall not (except in case of rebellion or invasion) be suspended.” 533 U.S., at 337. But no majority of this Court, at any time, has adopted that theory. Notably, moreover, even Justice Scalia appears to have abandoned his position just three years later in *Hamdi v. Rumsfeld*, 542 U.S. 507, 555–556 (2004) (dissenting opinion) (“The two ideas central to Blackstone’s understanding—due process as the right secured, and habeas corpus as the instrument by which due process could be insisted upon by a citizen illegally imprisoned—found expression in the Constitution’s Due Process and Suspension Clauses”); see also *id.*, at 558 (“The writ of habeas corpus was preserved in the Constitution—the only common-law writ to be explicitly mentioned”). Even one concurring opinion seems to recognize that the Suspension Clause “protect[s] a substantive right.” *Ante*, at 143 (opinion of THOMAS, J.).

A

The critical inquiry, the Court contends, is whether respondent's specific requests for relief (namely, admission into the United States or additional asylum procedures allowing for admission into the United States) fall within the scope of the kind of release afforded by the writ as it existed in 1789. *Ante*, at 116, 117; see also *ante*, at 115 (criticizing the court below for holding § 1252(e)(2) unconstitutional "without citing any pre-1789 case about the scope of the writ"). This scope, it explains, is what the Suspension Clause protects "at a minimum." *Ante*, at 116. But as the Court implicitly acknowledges, its inquiry is impossible. The inquiry also runs headlong into precedent, which has never demanded the kind of precise factual match with pre-1789 case law that today's Court demands.

To start, the Court recognizes the pitfalls of relying on pre-1789 cases to establish principles relevant to immigration and asylum: "At the time, England had nothing like modern immigration restrictions." *Ante*, at 123 ("As late as 1816, the word 'deportation' apparently 'was not to be found in any English dictionary'"). It notes, too, that our cases have repeatedly observed the relative novelty of immigration laws in the early days of this country. *Ante*, at 124 (citing *Harisiades v. Shaughnessy*, 342 U. S. 580, 588, n. 15 (1952) ("An open door to the immigrant was the early federal policy"); *St. Cyr*, 533 U. S., at 305 (remarking that the first immigration regulation was enacted in 1875)); see also *Demore v. Kim*, 538 U. S. 510, 539 (2003) (O'Connor, J., concurring in part and concurring in judgment) ("Because colonial America imposed few restrictions on immigration, there is little case law prior to that time about the availability of habeas review to challenge temporary detention pending exclusion or deportation").

The Court nevertheless seems to require respondent to engage in an exercise in futility. It demands that respondent unearth cases predating comprehensive federal immigration regulation showing that noncitizens obtained release

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from federal custody onto national soil. But no federal statutes at that time spoke to the permissibility of their entry in the first instance; the United States lacked a comprehensive asylum regime until the latter half of the 20th century. Despite the limitations inherent in this exercise, the Court appears to insist on a wealth of cases mirroring the precise relief requested at a granular level; nothing short of that, in the Court's view, would demonstrate that a noncitizen in respondent's position is entitled to the writ. See *ante*, at 122, n. 18 (dismissing respondent's cited cases on the ground that "[w]hether the founding generation understood habeas relief more broadly than described by Blackstone, Justice Story, and our prior cases . . . cannot be settled by a single case or even a few obscure and possibly aberrant cases"); see also Neuman, Habeas Corpus, Executive Detention, and the Removal of Aliens, 98 Colum. L. Rev. 961 (1998) (noting the inherent difficulties of a strict originalist approach in the habeas context because of, among other things, the dearth of reasoned habeas decisions at the founding).

But this Court has never rigidly demanded a one-to-one match between a habeas petition and a common-law habeas analog. In *St. Cyr*, for example, the Court considered whether a noncitizen with a controlled substance conviction could challenge on habeas the denial of a discretionary waiver of his deportation order. 533 U. S., at 293. In doing so, the Court did not search high and low for founding-era parallels to waivers of deportation for criminal noncitizens. It simply asked, at a far more general level, whether habeas jurisdiction was historically "invoked on behalf of noncitizens . . . in the immigration context" to "challenge Executive . . . detention in civil cases." *Id.*, at 302, 305. That included determining whether "[h]abeas courts . . . answered questions of law that arose in the context of discretionary relief" (including questions regarding the allegedly "erroneous application or interpretation of statutes"). *Id.*, at 302, and n. 18, 307.

Boumediene is even clearer that the Suspension Clause inquiry does not require a close (much less precise) factual match with historical habeas precedent. There, the Court concluded that the writ applied to noncitizen detainees held in Guantanamo, 553 U. S., at 771, despite frankly admitting that a “[d]iligent search by all parties reveal[ed] no certain conclusions” about the relevant scope of the common-law writ in 1789, *id.*, at 746. Indeed, the Court reasoned that none of the cited cases illustrated whether a “common-law court would or would not have granted . . . a petition for a writ of habeas corpus” like that brought by the noncitizen-detainee petitioners, and candidly acknowledged that “the common-law courts simply may not have confronted cases with close parallels.” *Id.*, at 746, 752. But crucially, the Court declined to “infer too much, one way or the other, from the lack of historical evidence on point.” *Id.*, at 752. Instead, it sought to find comparable common-law habeas cases by “analogy.” *Id.*, at 748–752.

There is no squaring the Court’s methodology today with *St. Cyr* or *Boumediene*. As those cases show, requiring near-complete equivalence between common-law habeas cases and respondent’s habeas claim is out of step with this Court’s longstanding approach in immigration cases.

B

1

Applying the correct (and commonsense) approach to defining the Great Writ’s historic scope reveals that respondent’s claims have long been recognized in habeas.

Respondent cites *Somerset v. Stewart*, Lofft. 1, 98 Eng. Rep. 499 (K. B. 1772), as an example on point. There, Lord Mansfield issued a writ ordering release of a slave bound for Jamaica, holding that there was no basis in English law for “sending . . . him over” to another country. *Id.*, at 17–19, 98 Eng. Rep., at 509–510. Thus, the writ issued even though it

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“did not free [the] slave so much as it protected him from deportation.” P. Halliday, *Habeas Corpus: From England to Empire 175* (2010). *Somerset* establishes the longstanding availability of the writ to challenge the legality of removal and to secure release into a country in which a petitioner sought shelter. Scholarly discussions of *Murray’s Case* suggest much of the same. There, the King’s Bench granted habeas to allow a nonnative to remain in England and to prevent his removal to Scotland for trial. Halliday, *Habeas Corpus*, at 236.

The Court dismisses these examples outright. It acknowledges that the petitioner in *Somerset* may have been allowed to remain in England because of his release on habeas, yet declares that this was “due not to the writ ordering [his] release” but rather to the existing state of the law. *Ante*, at 124. But the writ clearly did more than permit the petitioner to disembark from a vessel; it prevented him from being “sen[t] . . . over” to Jamaica. Lofft., at 17, 98 Eng. Rep., at 509. What England’s immigration laws might have prescribed after the writ’s issuance did not bear on the availability of the writ as a means to remain in the country in the first instance.

The Court also casts aside the facts of *Murray’s Case*, even though they, too, reveal that habeas was used to permit a nonnative detainee to remain in a country. *Ante*, at 122, n. 18. The Court minimizes the decision as “obscure and possibly aberrant.” *Ibid.* But given the relative paucity of habeas cases from this era, it is telling that the case serves as another example of the writ being used to allow a noncitizen to remain in England.²

²The Court notes “the ‘delicate’ relationship between England and Scotland at the time” of *Murray’s Case*. *Ante*, at 123, n. 18. Interestingly, the Court does not mention the delicate nature of the relationship between the United States and Iraq in *Munaf v. Geren*, 553 U.S. 674 (2008), the centerpiece of the Court’s argument, even though that case arose during

The reasoning of *Somerset* and *Murray's Case* carried over to the Colonies, where colonial governments presumed habeas available to noncitizens to secure their residence in a territory. See generally Oldham & Wishnie, The Historical Scope of Habeas Corpus and *INS v. St. Cyr*, 16 Geo. Immigration L. J. 485 (2002). For example, in 1755, British authorities sought to deport French Acadian settlers from Nova Scotia, then under the control of Great Britain, to the American Colonies. *Id.*, at 497. The Governor and Assembly of South Carolina resisted the migrants' arrival and detained them in ships off the coast of Charleston. They recognized, however, that the exclusion could not persist because the migrants would be entitled to avail themselves of habeas corpus. *Id.*, at 498. Ultimately, the Governor released most of the Acadian migrants for resettlement throughout the Colony. *Ibid.*

Founding-era courts accepted this view of the writ's scope. Rather than credit these decisions, the Court marches through an assorted selection of cases and throws up its hands, contending that the case law merely reflects a wide range of circumstances for which individuals were deprived of their liberty. See *ante*, at 121–122. Thus, the Court concludes, the common law simply did not speak to whether individuals could seek “release” that would allow them to enter a country (as opposed to being expelled from it).

At the same time, notwithstanding its professed keen interest in precedent, the Court seems to discount decisions supporting respondent's view that habeas permitted release from custody into the country. At least two other classes of cases demonstrate that the writ was available from around the founding onward to noncitizens who were detained, and wanted to remain, including those who were prevented from entering the United States at all.

a military conflict. *Ante*, at 119–120. Nor does it acknowledge the impact that the relationship had on the *Munaf* Court's decision to refrain from issuing the writ. See Part II–B–3, *infra*.